

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Valentina Concha-Toro	Team: Squad #15	CCRB Case #: 201909755	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/25/2019 6:45 PM, Friday, 01/25/2019 11:40 PM	Location of Incident: Front of 89 Hart Street; 79th Precinct stationhouse	Precinct: 79	18 Mo. SOL 7/25/2020	EO SOL 3/11/2021	
Date/Time CV Reported Fri, 11/08/2019 12:12 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 11/08/2019 12:12 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Sonya Senra	14981	956253	079 PCT
2. POM Moses Lebron	09546	956831	079 PCT
3. POM Julio Ramos	05241	952144	QM SEC
4. DT3 Daniel Panchyn	00223	947323	079 DET
5. POM James Lester	942	956839	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Scott Hughes	02410	953977	079 PCT
2. SGT Matthew Doherty	05504	950337	TB DT20
3. DT3 Katherine Rosero	2764	929089	GVSD Z1
4. DT3 Simon Laine	01188	936901	F S S

Officer(s)	Allegation	Investigator Recommendation
A.POM Moses Lebron	Abuse: At Hart Street, Police Officer Moses Lebron stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
B.POF Sonya Senra	Abuse: At Hart Street, Police Officer Sonya Senra stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
C.POM Julio Ramos	Abuse: At Hart Street, Police Officer Sonya Senra stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.	
D.POF Sonya Senra	Abuse: At Hart Street, Police Officer Sonya Senra searched § 87(2)(b)	
E.POM Moses Lebron	Abuse: At Hart Street, Police Officer Moses Lebron searched § 87(2)(b)	
F.POM Moses Lebron	Abuse: At Hart Street, Police Officer Julio Ramos searched § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
G.POM James Lester	Abuse: At Hart Street, Police Officer James Lester searched § 87(2)(b)	
H.POF Sonya Senra	Abuse: At Hart Street, Police Officer Julio Ramos searched § 87(2)(b)	
I.POM Julio Ramos	Abuse: At Hart Street, Police Officer Julio Ramos searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	
J.POM Moses Lebron	Abuse: At Hart Street, Police Officer Moses Lebron searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were occupants.	
K.DT3 Daniel Panchyn	Abuse: At the 79th Precinct stationhouse, Detective Daniel Panchyn performed a cavity search of § 87(2)(b)	
L.POM Julio Ramos	Abuse: At the 79th Precinct stationhouse, Police Officer Julio Ramos searched the vehicle in which § 87(2)(b) was an occupant.	
M.POM Julio Ramos	Abuse: At the 79th Precinct stationhouse, Police Officer Julio Ramos damaged § 87(2)(b)'s property.	

Case Summary

On November 8, 2019, § 87(2)(b) filed this complaint with the CCRB online.

At approximately 6:45 p.m. on January 25, 2019, § 87(2)(b) was driving on Hart Street in Brooklyn. Her co-worker, § 87(2)(b) was seated in the front passenger seat, and three individuals, § 87(2)(b), § 87(2)(b), and § 87(2)(b) who § 87(2)(b) informed § 87(2)(b) were family members of his were in the rear seats. A marked patrol vehicle pulled § 87(2)(b) over. PO Julio Ramos, PO Sonya Senra, and PO Moses Lebron of the 79th Precinct stopped § 87(2)(b) vehicle (**Allegations A-C: Abuse of Authority, Vehicle Stop – Exonerated**). PO James Lester of the 79th Precinct arrived. One by one, § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were asked to exit the vehicle. PO Senra asked § 87(2)(b) if she could be searched and § 87(2)(b) consented (**Allegation D: Abuse of Authority, Search – Exonerated**). PO Lebron searched § 87(2)(b) and § 87(2)(b) (**Allegations E and F: Abuse of Authority, Search – Exonerated**). PO Lester searched § 87(2)(b) (**Allegation G: Abuse of Authority, Search – Exonerated**). PO Senra searched § 87(2)(b) (**Allegation H: Abuse of Authority, Search – Exonerated**). § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) stood at the rear of the vehicle facing away from the vehicle. PO Ramos and PO Lebron searched inside of § 87(2)(b) vehicle (**Allegations I and J: Abuse of Authority, Vehicle Search – Exonerated**). Marijuana and a loaded firearm were recovered from inside the vehicle. § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were placed in handcuffs and removed to the 79th Precinct stationhouse. At the stationhouse § 87(2)(b) was taken to an interview room and asked to provide a DNA sample. § 87(2)(b) consented, and a buccal swab was taken (**Allegation K: Abuse of Authority, Cavity Search – Unsubstantiated**). Approximately on September 17, 2019, § 87(2)(b) vehicle was returned to her. The items inside the vehicle had been removed while in police custody (**Allegation L: Abuse of Authority, Vehicle Search – Exonerated**). § 87(2)(b) vehicle was enabled with a security lock and would not run, the window tints had been stripped away, the steering wheel had been removed and placed upside-down, and paint had been chipped off the front and rear bumpers (**Allegation M: Abuse of Authority, Property Damage – Exonerated**).

Three BWC videos were obtained from IAB (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: At Hart Street, Police Officer Moses Lebron stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: At Hart Street, Police Officer Sonya Senra stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: At Hart Street, Police Officer Sonya Senra stopped the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

It is undisputed that at approximately 6:45 p.m. on January 25, 2019, a vehicle was stopped in front of 89 Hart Street, Brooklyn, in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants. The vehicle, a white Cadillac, belonged to § 87(2)(b) was registered in New Jersey and registered to § 87(2)(b). All of the vehicle's windows were tinted and the LED break light strip was not functioning.

§ 87(2)(b) stated (Board Review 02) that she picked up § 87(2)(b) and was planning on dropping him off at his mother's home at § 87(2)(b) in Brooklyn. § 87(2)(b), § 87(2)(b), and § 87(2)(b) were with § 87(2)(b). § 87(2)(b) did not know who § 87(2)(b), § 87(2)(b), and § 87(2)(b) were. § 87(2)(b) told § 87(2)(b) that they were his family members and that they also were going to § 87(2)(b)'s destination. § 87(2)(b) agreed to drive § 87(2)(b), § 87(2)(b) and § 87(2)(b) and they sat in § 87(2)(b) rear seats. § 87(2)(b) drove toward § 87(2)(b). In the vicinity of Nostrand Avenue and an unknown subway station, § 87(2)(b) asked her to stop at a Jamaican restaurant. § 87(2)(b) stopped, and § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) exited the vehicle. They went into the restaurant and returned to the vehicle. § 87(2)(b) returned to the vehicle with a plastic bag containing food. § 87(2)(b) continued driving and turned left onto Hart Street.

PO Ramos stated (Board Review 03) that he and his two partners, PO Senra and PO Lebron were traveling northbound on Throop Avenue in Brooklyn. He did not recall who the vehicle's operator was. PO Ramos first observed § 87(2)(b) vehicle on Throop Avenue in the right traffic lane. PO Ramos noted that the vehicle's windows were tinted. The vehicle moved to the left lane and turned left onto Hart Street without signaling, which was an unsafe maneuver and a VTL infraction. After observing these VLT infractions, the patrol vehicle's lights were turned on and the vehicle was pulled over. PO Ramos approached the driver side of the vehicle but did not recall which of his two partners accompanied him to that side of the vehicle. § 87(2)(b) was informed of the VTL infractions, but PO Ramos did not recall who told § 87(2)(b).

BWC videos from PO Ramos and PO Lebron (Board Review 01) captured that PO Ramos was the driver of the patrol vehicle. At internal timestamp 6:45:57 p.m. PO Ramos PO Lebron and PO Senra exit the patrol vehicle and approach a stopped white sedan whose two rear brake lights are on, but the top LED strip light is not. PO Lebron approaches the driver door and PO Ramos approaches the driver side rear door. PO Senra approaches the front passenger side of the vehicle. PO Lebron informs § 87(2)(b) that her plate light and rear brake light is out, and that she had excessive tints.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

According to People v Bacquie, 154 A.D.3d 648 (Board Review 04), a vehicle may be stopped by an officer if they believe the tinted windows to be excessively tinted.

§ 87(2)(b) vehicle had both tinted windows in addition to a malfunctioning LED brake light.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Therefore, it is recommended that **Allegations A-C** be closed as **Exonerated**.

Allegation (D) Abuse of Authority: At Hart Street, Police Officer Sonya Senra searched § 87(2)(b)

Allegation (E) Abuse of Authority: At Hart Street, Police Officer Moses Lebron searched § 87(2)(b)

Allegation (F) Abuse of Authority: At Hart Street, Police Officer Moses Lebron searched § 87(2)(b)

Allegation (G) Abuse of Authority: At Hart Street, Police Officer James Lester searched

§ 87(2)(b)

Allegation (H) Abuse of Authority: At Hart Street, Police Officer Sonya Senra searched § 87(2)(b).

Allegation (I) Abuse of Authority: At Hart Street, Police Officer Julio Ramos searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

Allegation (J) Abuse of Authority: At Hart Street, Police Officer Moses Lebron searched the vehicle in which § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants.

It is undisputed that § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) were occupants in a vehicle. PO Lebron and PO Ramos stood on the driver side of the vehicle and PO Senra stood at the passenger side of the vehicle. PO Ramos conducted a search with this department cellphone on § 87(2)(b) license. § 87(2)(b) license in NYS had been revoked and she had outstanding warrant for an arrest she had § 87(2)(b). PO Lester arrived on scene. All the occupants were removed from the vehicle. PO Ramos and PO Lebron searched the vehicle. Marijuana and a loaded firearm were found in the vehicle (Board Review 05). All the occupants were placed under arrest (Board Reviews 06-10) and removed to the 79th Stationhouse.

At internal timestamp 6:46:17 p.m. in both PO Lebron's and PO Ramos' BWC videos (Board Review 01), PO Lebron informs § 87(2)(b) that he smells marijuana. At internal timestamp 6:48:14, PO Senra informs § 87(2)(b), § 87(2)(b), and § 87(2)(b) that the odor of marijuana is emanating from the rear of the vehicle. PO Lebron instructs PO Lester to "toss him carefully," and § 87(2)(b) steps out of the vehicle. PO Lester walked to the rear of the vehicle with § 87(2)(b). At the driver door PO Senra instructs § 87(2)(b) to step out and face her but they are out of frame of the BWC videos. § 87(2)(b) walks to the rear of the vehicle. PO Ramos instructs § 87(2)(b) to step out of the vehicle. PO Senra touches the front pocket area of § 87(2)(b)'s jacket and around his waist area. PO Lebron asks § 87(2)(b) to exit the vehicle and PO Lebron touches the inside of § 87(2)(b)'s unzipped jacket, his arms, his waist area, and down his back and legs. § 87(2)(b) walks to the rear of the vehicle. § 87(2)(b) exits the vehicle and PO Lebron touches the front of his body, his arms, and the back of his legs. At internal timestamp 6:56:25 p.m., PO Ramos searches the front driver area of the vehicle. PO Ramos finds marijuana in the center consul cup holder area. PO Lebron searches the front passenger seat area. At 6:58:00 p.m., PO Lebron finds a firearm below the front passenger seat.

§ 87(2)(b) stated (Board Review 02) that at approximately 6:00 p.m. on the date of incident she had smoked marijuana and had approximately a fourth of an ounce of unsmoked marijuana either in her bag or in the middle consul in the vehicle. § 87(2)(b) was wearing boot cut pants and a shawl with pockets, but she did not recall what else she wore. PO Senra asked her to turn her shawl's pockets inside out which § 87(2)(b) did. § 87(2)(b) extended her arms away from her body and PO Senra touched § 87(2)(b) on the outside of her clothes starting at the sides of her upper chest and moved her hands down § 87(2)(b) body. PO Senra placed her hands underneath the hem of the pants, but § 87(2)(b) did not recall PO Senra placed her hands inside of any pockets. § 87(2)(b) was not aware whether § 87(2)(b), § 87(2)(b), § 87(2)(b), or § 87(2)(b) were touched, frisked, or searched by any police officers at this moment during the incident.

§ 87(2)(b) stated (Board Review 11) that at approximately 5:00 p.m. on the date of incident he had smoked marijuana but did not have any on his person when he got into § 87(2)(b) vehicle. Neither § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), or § 87(2)(b) were touched, frisked, or searched by any officer on scene when they were asked to step out of the vehicle and walked to the trunk.

§ 87(2)(b) stated (Board Review 12) that he exited the vehicle and PO Lester walked with him to the rear of the vehicle. PO Lester instructed § 87(2)(b) to empty his pockets. PO Lester placed his hands on the outside of § 87(2)(b) pockets and then placed his hands inside of § 87(2)(b) two jacket pockets and two front pockets. At the same time, PO Senra placed her hands on the outside of § 87(2)(b) s pockets and then placed her hands inside them. PO Lebron touched the outside of § 87(2)(b) s pockets and then placed his hands inside of them.

§ 87(2)(b) who was incarcerated, refused to participate with the investigation and provide a statement. After exhausting all contact attempts, no statement was obtained from § 87(2)(b)

PO Ramos stated (Board Review 03) that prior to exiting the patrol vehicle at the beginning of the incident he searched the vehicle's license plate and the search revealed there were warrants and a suspended license under a female's name. Due to the tinted windows, PO Ramos was not able to see who the driver was until he approached the vehicle. Once PO Ramos confirmed that § 87(2)(b) was the driver and owner of the vehicle, § 87(2)(b) was the female individual who had the outstanding warrants, she was under arrest. PO Ramos did not have an independent recollection of the odor of marijuana during the incident. Because the registered owner of the vehicle was under arrest, PO Ramos determined that they could not release the car, and all the occupants must exit the vehicle. PO Ramos called for an additional NYPD vehicle for assistance. Either PO Senra or PO Lebron instructed the occupants to exit the vehicle. PO Ramos did not recall if the civilians were out of the vehicle before or after additional officers arrived. PO Ramos did not remember which additional officers arrived to assist. PO Ramos did not recall if any civilians were searched at this point during the incident, but the VTL infractions and warrants for § 87(2)(b) alone warranted a search of the individuals. The vehicle was in possession of officers due to § 87(2)(b) suspended license and therefore PO Lebron looked in the front passenger seat area of the vehicle. Due to § 87(2)(b) suspended license and warrants, PO Ramos stated that the officers had probable cause to search the vehicle. The BWC videos were shown to PO Ramos during his interview but they did not refresh his recollection.

§ 87(2)(g)
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§ 87(2)(g) PO Lebron and PO Ramos were the only officers who searched in the vehicle while at the scene of the vehicle stop.

According to People v. Chestnut 43A.D.2d 260 (Board Review 13), the odor of marijuana, and nothing more, in a vehicle is sufficient to provide officers with probable cause to search the vehicle and all the occupants of the vehicle.

§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations D-J** be closed as **Exonerated**.

Allegation (K) Abuse of Authority: At the 79th Precinct stationhouse, Detective Daniel Panchyn performed a cavity search of § 87(2)(b)

It is undisputed that § 87(2)(b) was placed under arrest due to the firearm and marijuana found in her vehicle. § 87(2)(b) was removed to the 79th Precinct stationhouse. At the stationhouse a DNA sample was collected from § 87(2)(b) in the form of a buccal swab.

§ 87(2)(b) stated (Board Review 02) that at the 79th Precinct stationhouse she was placed in a holding cell. She was escorted to the upper level of the stationhouse and into a room, twice. The first time two male plain clothes officers informed her that a firearm was found. § 87(2)(b) informed them that she was only responsible for the marijuana found in the vehicle and not the firearm. The second time, two other male plain clothes officers spoke to her. The two plain clothes officers asked her questions regarding the firearm and who she believed it belonged to. The two plain clothes officers asked § 87(2)(b) if they could take a buccal swab. § 87(2)(b) gave the two officers permission because they needed to do their jobs.

Det. Panchyn stated (Board Review 27) that the detectives are assigned cases on a rotating queue, and that they perform “enhancements” for the uniformed officers, including but not limited to debriefing the arrested individuals, obtaining DNA samples, and interviewing the arresting police officer. Det. Panchyn determined that it was necessary for this incident to obtain DNA collection to determine ownership of the firearm. No supervisor instructed Det. Panchyn how to conduct this enhancement or that DNA samples needed to be collected. § 87(2)(b) was taken to an interview room, and she verbally waived her rights and agreed to be interviewed. § 87(2)(b) interview was recorded on a camera, including when Det. Panchyn asked for § 87(2)(b) consent to collect her DNA and her verbal consent. Det. Panchyn did not recall the specifics regarding the conversation of consent he had with § 87(2)(b). § 87(2)(b)’ mouth was swabbed using a Q-tip like spool provided in a DNA collection kit. The DNA collection kit includes a consent form, but because § 87(2)(b) interview and her verbal consent was recorded, Det. Panchyn did not have § 87(2)(b) sign the consent form. To the best of Det. Panchyn’s knowledge, the use of videoed consent in lieu of the consent form is a policy in place because since he began as a detective at the 79th Precinct detective squad, this use of video was common practice. Det. Panchyn was not aware of any memo, formalized training or command instruction that stated the video recording of consent could be used instead of having a civilian sign the consent form. Det. Panchyn had performed multiple DNA collections in the past using videoed consent, and there had been no issue. The video of § 87(2)(b) recorded consent was at the Kings County District Attorney’s Office.

The 79th Precinct detective squad DD5s (Board Review 14) notes that the case owner for the investigation was Det. Panchyn. The DD5 notes that a videotaped interrogation of § 87(2)(b) had been conducted, and that a “DNA exemplar” was collected from § 87(2)(b). A property voucher for § 87(2)(b) DNA notes that the sample was provided with consent from § 87(2)(b) and that the sample was provided in the presence of Det. Panchyn, who was identified as the invoicing, finding, and investigating officer.

§ 87(2)(g)

According to the NYPD Patrol Guide, Section 218-51 (Board Review 15), when determined a suspect might have probative evidence on their person, appropriate evidence to collect can include a buccal swab. An officer must obtain voluntary consent and request that a Consent to Suspect Evidence Collection Kit be signed.

§ 87(2)(g)

Det. Panchyn explained that he did not obtain the signed form because of the common practice in his command that videoed consent could be utilized as a stand in for the form. While the DD5 for § 87(2)(b) interview noted that it had been recorded, there was no information noting that the buccal swab's consent had been recorded. § 87(2)(g)

Therefore, it is recommended that **Allegation K** be closed as **Unsubstantiated**.

Allegation (L) Abuse of Authority: At the 79th Precinct stationhouse, Police Officer Julio Ramos searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) vehicle was removed to the 79th Precinct stationhouse. At the stationhouse an additional search on the vehicle was conducted.

§ 87(2)(b) stated (Board Review 02) that she had the following items in the vehicle: receipts, a bundle of smudging sage, blue tooth speaker, shark vacuum, clothes, clear pink Victoria Secret bag, light bulbs, ashtray with ashes, a Jul, and an E-Z pass. While § 87(2)(b) did not personally observe any additional searches of the vehicle, she believed the vehicle was searched at the stationhouse at some point because the items that were in the vehicle prior to being arrested were no longer in the vehicle when it was returned to her.

PO Ramos stated (Board Review 03) that because § 87(2)(b) was under arrest, her vehicle was under police custody. At the stationhouse he performed an inventory search of the vehicle at the stationhouse. PO Ramos did not recall if any other officer assisted him.

NYPD property vouchers (Board Review 05) were obtained for § 87(2)(b) vehicle which was invoiced by PO Ramos for arrest evidence. Property vouchers were obtained for the items which were inside of § 87(2)(b) vehicle.

According to NYPD Patrol Guide, Section 218-13 (Board Review 16), when an automobile comes into police custody, the items inside of said vehicle will be inventoried. To do so, an officer may search the interior of the vehicle thoroughly including areas such as the glove compartment, trunk, console, and any other areas that may contain valuables. Property vouchers will be created for the items removed from the vehicle.

§ 87(2)(g)

Therefore, it is recommended that **Allegation L** be closed as **Exonerated**.

Allegation (M) Abuse of Authority: At the 79th Precinct stationhouse, Police Officer Julio Ramos damaged § 87(2)(b)'s property.

§ 87(2)(b) stated (Board Review 02) that at some date at or around September 17, 2019, her Cadillac was returned to her. Upon inspecting the vehicle there were paint chips on the front and rear bumpers, a security lock had been enabled which did not allow for the vehicle to be turned on, the window tints had been stripped away, the steering wheel had been removed and placed upside-down. § 87(2)(b) had photographs which she stated she would provide the investigation at a later date.

PO Ramos stated (Board Review 03) that he did not recall removing any pieces of the vehicle or that any damage to the vehicle occurred. PO Ramos did not know whether the vehicle was moved to an impound unit from the stationhouse. He did not know how long § 87(2)(b) vehicle was in police custody.

The property vouchers (Board Review 05) for § 87(2)(b) vehicle note that at the time the vehicle was taken into police custody, the interior and exterior was in poor condition.

After her in-person interview, contact attempts were exhausted in order to obtain the photographs of the vehicle. No contact was established with § 87(2)(b) and no photographs were received. Thus, no photograph evidence of the damage was obtained.

§ 87(2)(g)

Therefore, it is recommended that **Allegation M** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 18).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 19).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 20).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 21).
- PO Senra has been a member of service for seven years and has been a subject in nine prior CCRB complaints and 25 allegations, of which three were substantiated:

- 201706037 involved substantiated allegations of a frisk, a search, and use of a discourteous word against PO Senra. The Board recommended charges, and the NYPD imposed formalize training.
- PO Moses has been a member of service for six years and has been a subject in six prior CCRB complaints and 13 allegations, of which one was substantiated:
 - 201710310 involved a substantiated allegation of a vehicle search against PO Moses. The Board recommended command discipline, and the NYPD imposed no penalty.
- PO Ramos has been a member of service for nine years and has been a subject in 14 prior CCRB complaints and 31 allegations, of which three were substantiated:
 - 201808305 involved substantiated allegations of use of discourteous language and search of premises against PO Ramos. The Board recommended command discipline, and the NYPD imposed command discipline.
- Det. Panchyn has been a member of service for 12 years and has been a subject in three prior CCRB complaints and six allegations, none of which were substantiated. [REDACTED]
 § 87(2)(g) [REDACTED]
 [REDACTED]
- PO Lester has been a member of service for six years and has been a subject in one prior CCRB complaint with one allegation, which was not substantiated. § 87(2)(g) [REDACTED]
 [REDACTED]

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to multiple arrests.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
 [REDACTED]
- [REDACTED]
 [REDACTED]
- [REDACTED]
 [REDACTED]
 [REDACTED]
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Squad No. 15

Investigator: Valentina Concha-Toro Inv. Valentina Concha-Toro November 29, 2021
Signature Print Title & Name Date

Squad Leader: Simon Wang IM Simon Wang 11/29/2021
Signature Print Title & Name Date

Reviewer: _____

Signature Print Title & Name Date